

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/22/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0003899

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: KEVIN DUGEN ET AL.

VS.

DEFENDANT: CATALYST HOUSING
GROUP, LLC, ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR
PROGRAM

RULING

Plaintiff's motion to compel is **GRANTED**. Defendants are compelled to produce the timeline of events reviewed by Ms. Sowa within 5 days of the hearing on this matter, and to produce a declaration or verified discovery response regarding their efforts to locate the other documents identified in Plaintiff's motion within 10 days of the hearing. Plaintiff's request for sanctions in the amount of \$5,882.50 is **GRANTED**.

Plaintiff's Arguments in Support of his Motion

Plaintiff Kevin Dugen moves to compel the production of documents he requested in a notice of deposition for Holly Sowa, the Director of Real Estate of Defendant Greystar California, Inc.'s ("Greystar"). Greystar did not serve objections to any of the document requests. Ms. Sowa appeared for her deposition but did not produce any documents. During the deposition, Ms. Sowa testified that she reviewed a timeline of events to prepare to her deposition, which timeline was prepared in 2024 by Likica Grceva, a Greystar regional manager. Greystar's counsel claimed that this document was privileged and instructed Ms. Sowa not to produce it even though it was not prepared by counsel and has not been identified on a privilege log. Plaintiff argues that the timeline is not privileged and must be produced.

Ms. Sowa also testified that Greystar maintains written standard operating procedures ("SOP") governing the handling of tenant complaints, mold remediation, water-leak complaints, unit pre-leasing inspection, and resident inspection, as well as training materials on these topics. Ms. Sowa explained that these documents were in an electronic system and undertook to have them rendered in a producible form. Greystar's counsel agreed to produce these documents but

they have not been produced. Ms. Sowa also testified she is in possession of the incident report from December 2023 concerning Plaintiffs' complaint about mold or water intrusion but this document has also not yet been produced. Plaintiff argues that all these documents were responsive to his requests and are relevant to the parties' dispute and therefore must be produced.

Defendants' Arguments in Support of their Opposition

Defendants argue that the timeline of events is privileged because it was prepared in anticipation of litigation. Defendants also argue that Ms. Sowa did not actually testify that Greystar maintains a separate, standalone incident report and that Defendants should be allowed to submit a verified supplemental response describing their search and stating whether a separate incident report has been located. Finally, Defendants contend that the SOPs and training materials are dynamic internal resources, and superseded historical versions may not have been retained.

Discussion

Timeline of Events

Defendants have the burden of showing the timeline of events is protected by the attorney-client privilege or attorney work product doctrine. (See *Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733; *League of California Cities v. Superior Court* (2015) 241 Cal.App.4th 976, 993.) However, Defendants present no evidence, by declaration or otherwise, to support their claim of privilege or work product. Their counsel's generalized statement in paragraph 4 that "Greystar objected to producing the timeline because it was prepared in connection with this dispute and in anticipation of litigation for the purpose of assisting Greystar and its counsel in evaluating the claims and preparing the defense" is insufficient. Defendants submit no declaration from the author or recipient of the timeline (neither of whom are attorneys) regarding the circumstances under which it was prepared, including any statement as to who (if anyone) asked them to prepare the timeline and for what purpose. Counsel's statement is also inconsistent with Ms. Sowa's deposition testimony, in which she stated that the timeline was "an e-mail from our regional to me and the client." (Declaration of Aleksandr A. Volkov ("Volkov Decl."), Exh. E at p. 83:23–24.)

Because Defendants have failed to satisfy their burden, their objection is overruled.

Defendants do not dispute that Ms. Sowa used the timeline to refresh her memory. (See Volkov Decl., Exh. E at pp. 14:23–15:2.) Ms. Sowa relied on the timeline when testifying that Plaintiffs had been offered and refused a unit transfer and further remediation. (*Id.* at p. 81:14–22.) "[I]f a witness, either while testifying or prior thereto, uses a writing to refresh his memory with respect to any matter about which he testifies, such writing must be produced at the hearing

at the request of an adverse party” (Evid. Code § 771(a).) Accordingly, Defendants are compelled to produce the timeline of events to Plaintiff.

Other Documents

Ms. Sowa testified that Greystar provides training available to its members and employees, some of which relates to property management. (Volkov Decl., Exh. E at pp. 20:10–22:03.) She further testified that Greystar has written SOPs for tenant mold-related complaints and mold remediation. She testified that she would see if they would be able to be downloaded and was sure they were housed in an electronic system. (*Id.* at 35:4–37:4.) Ms. Sowa also testified that there would be an incident report for the water intrusion for December 2023. (*Id.* at p. 86:10-19.)

Defendants are compelled to provide a declaration or verified response to the document requests providing the following information: (1) the specific search(es) Defendants made to locate the training materials and SOPs in effect during the time of the incidents described in Plaintiffs’ Complaint, including the individuals involved in the search, the databases or other sources searched, and the search terms used; (2) the specific search(es) Defendants made to locate a December 2023 incident report or other document of that nature, along with related documentation such as photographs or correspondence, regardless of how such a document was titled or characterized by Defendants, including the individuals involved in the search, the databases or other sources searched, and the search terms used; and (3) the results of those searches. Defendants’ declaration(s) or verified response(s) must be provided within 10 days of the hearing on this matter. Plaintiffs are granted leave to take the depositions of any individuals involved in the searches to question them regarding the extent and nature of the efforts made by Defendants to locate these documents. Plaintiffs may also resume the deposition of Ms. Sowa to question her about any additional documents located by Defendants.

Sanctions

Plaintiff’s request for sanctions against Greystar and its counsel in the amount of \$5,882.50 is granted. (See Code Civ. Proc. §§ 2025.450(g), 2025.480(j).)

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/22/26 TIME: 1:30 P.M. DEPT: A CASE NO. CV0004255

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: PAUL G. REA, ET AL

vs.

DEFENDANT: PACIFIC GAS AND
ELECTRIC COMPANY, ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR
PROGRAM

RULING

Appearances required. The parties should be prepared to address the status of meet and confer discussions and discovery facilitation.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyailnzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/22/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0005353

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: OPTIMAL PARTNERS, A
CALIFORNIA GENERAL PARTNERSHIP

vs.

DEFENDANT: SAMIA MANAGHEBI ET
AL.

NATURE OF PROCEEDINGS: 1) MOTION – JUDGMENT ON THE PLEADINGS
2) ORDER – SHOW CAUSE – FAILURE TO APPEAR

RULING

Defendants’ motion for judgment on the pleadings is **GRANTED** without leave to amend.

Allegations in Plaintiff’s Complaint

Plaintiff Optimal Partners alleges that Defendants Samia Managhebi and Brandon Adlesh submitted a higher bid at the trustee’s sale for the property located at 165 Grove Road, Bolinas, California by falsely representing themselves as “eligible bidders” and “prospective owner-occupants” under Civil Code Section 2924m, when they had no intent to occupy the property as their principal residence. Defendants’ bid interfered with Plaintiff’s acquisition of the property as the initial high bidder, rendering the subsequent trustee’s deed to Defendants void or voidable. The Complaint asserts causes of action for intentional interference with prospective economic advantage, negligent interference with prospective economic relations, violation of Civil Code Sections 2924g, 2924h, and/or 2924m, cancellation of instruments, declaratory relief, quiet title, and unfair business practices.

Procedural Deficiencies

The Court draws Defendants’ attention to Local Rule 2.8(C)2, which requires attachment of the operative pleading as an exhibit to the motion for judgment on the pleadings.